India

September 14, 1951

Memorandum for: Dean Rusk

From: The President

Attached is a marked up copy of the message from Mr. Nehru to the United States and also the marked up copy of our reply.

I have tried to put in exactly the same comments as were on the original and I think I have succeeded in doing that, even including the bad spelling.

HST

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President added in longhand - "It is a pleasure to fix up this souvenir for you. I'm one of your admirers." "

COPY

EMBASSY OF INDIA
Washington, D.C.

~~SECRET~~

DECLASSIFIED
Authority NLT 97-14 *2
By SO NARA, Date 9/10/04

August 23, 1951

Dear Mr. Ambassador,

I am desired to convey to you the following reply on behalf of the Government of India to your Government invitation to participate in a Conference to conclude a Treaty of Peace with Japan to be convened on September 4, 1951, in San Francisco.

BEGINS: "The Government of India have the honour to acknowledge with thanks the receipt of the reply of the Government of the United States of America to the representations which they had made on the Japanese Peace Treaty in their communication dated July 30, 1951. They fully appreciate the consderation given to their views by the United States Government and wish to assure them that the present reply is conceived in a spirit of frankness and sincere friendship for Government and people of the United States of America. 2 2 2

2. Throughout the negotiations that have taken place between the two Governments on the subject of the Treaty the Government of India have laid emphasis upon two fundamental objectives:

(I) The terms of the Treaty should concede to Japan a position of honour, equality and contentment among the community of free nations; Oh yeh!

(II) They should be so framed as to enable all countries specially interested in the maintenance of a stable peace in the Far East to subscribe to the Treaty sooner or later. Only right statement - so far

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The Government of India have after most careful thought come to the conclusion that the Treaty does not in material respects satisfy either of these two criteria. Evidently the "Govt of India has consulted Uncle Joe + Mousie Dung of China!

3. Condition (I)

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(a) It is only natural to expect that Japan should desire the restoration in full of her sovereignty over territory of which the inhabitants have a historical affinity with her own people and which she has not acquired by aggression from any other country. The Ryuku and the Bonin Islands fully satisfy this description. Nevertheless the Treaty proposes that until ~~the~~ United States Government seek and obtain trusteeship over these Islands they should continue to be subject to the legislative and administrative control of the United States. It is apparent to the Government of India that such an arrangement cannot but be a source of dissatisfaction to large sections of the Japanese people and must carry the seed of future dispute and possible conflict in the Far East. ?

(b) The Government of India recognise that as a sovereign nation Japan should have the right to make arrangements for her defence as provided in Article 5 of the Treaty. If in exercise of this right Japan should decide to enter into defensive agreements with a friendly power no one could reasonably object to this. But the right should be exercised by the Government of Japan when Japan has become truly sovereign. ? A provision in the Treaty which suggests that the present occupation force may stay on in Japan as part of such a defensive agreement is bound to give rise to the impression that the agreement does not represent a decision taken by Japan in the full enjoyment of her freedom as a sovereign nation. Let Stalin come in and decide it - shall we? The effect of this not only on the people of Japan but upon large sections of people in Asia is bound to be most unfortunate. ?

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4. Condition (II)

As already stated the Government of India attach the greatest importance to the Treaty providing that the Island of Formosa should be returned to China. The time and manner of such return might be the subject of separate negotiations but

to leave the future of the Island undetermined, in spite of past international agreements, in a document which attempts to regulate the relations of Japan with all Governments that were engaged in the last war against her does not appear to the Government of India to be either just or expedient. **Mutatis mutandis** the same argument applies to the Kurile Island and to South Sakhaline. Is that a fair statement? I doubt it.



5. For foregoing reasons, the Government of India have decided, with regret, that they cannot be parties to the Treaty. It is their sincere hope that lasting peace will prevail in the Far East and, to that end, they will continue to cooperate with the United States Government and other Governments in such manner as may be open to them, consistently with the principles on which their foreign policy is based. As a first step, it is their intention, as soon as this may be practicable, to put an end to the state of war between them and Japan, and to establish full diplomatic relations with that country.

6. It has already been announced that the Conference convened at San Francisco to consider the draft Peace Treaty with Japan will not be open to negotiations, though attending Governments will be free to state their views on the Treaty. The Government of India feel that the statement of their views on the Treaty contained in this reply should be adequate to clarify their own position to the Conference. It is their intention, if the United States Government have no objection, to communicate this reply to their own Parliament which is now in session on August 27. Once the document has been published, it will be available for the information of the Conference, and the Government of India will be glad if the Government of the United States, which will act as host to the Conference, will have this reply circulated to its members. As, for reasons already stated, the Government of India will be unable to sign the Treaty, they think

that it is not necessary for them to send representatives to it." ENDS

The Government of India would be glad to know if the United States Government have any objection to their informing our Parliament of this reply on Monday, August 27, 1951.

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With assurances of my highest esteem,

S/ M.K. Kirpalani,
Charge d'Affaires ad interim.

The Honourable John Foster Dulles,
Consultant to the Secretary of State,
U.S. Department of State,
Washington, D.C.

4th Draft
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8/24/51

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The Government of the United States has the honor to acknowledge the note of the Government of India of August 23, 1951 in reply to the explanations given by the Govemment of the United States to the Government of India under date of July 30, 1951, regarding the Japanese Peace Treaty. The Government of the United States responds in the same spirit of frankness and friendship which, as the Government of India points out, animates its note of August 23.

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1. The Government of the United States welcomes the expressed intention of the Government of India to put an end to the state of war between it and Japan and to establish diplomatic relations with that country. The over-riding desire of the Government of the United States is to re-establish [just and durable] peace in Asia. We believe that that peace will be more stable if it is founded on concerted action, just as victory involved concerted action and the Occupation involved concerted action. However, the United States will not feel that its efforts and sacrifices for the common cause

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have been in vain if they have contributed to conditions which enable the Government of India to make peace with a Japan which is no longer a militaristic and aggressive threat. Had it not been for the efforts and sacrifices of the United States, India nor any other power in the Pacific would be able to make peace except on Japanese terms.

2. The Government of the United States regrets that the Government of India feels that the pending Treaty of Peace has imperfections such that the Government of India prefers to make a separate peace which could never have been made had not Japan surrendered to the U.S. There can never be united concerted action for peace unless the nations are willing to accept what, to each, may seem imperfections.

3. In its specification of imperfections the Govemment of India suggests that the Treaty of Peace will not provide Japan with a "position of honor, equality and contentment among the community of free nations". This suggestion greatly surprises the Government of the United States. From the beginning the announced goal of the United States has been to restore Japan to just such a position. It is our belief, shared by the Government of Japan and many other governments, that the pending Treaty to an unprecedented degree achieves that goal.

The Prime Minister of Japan in a letter of July 13, 1951, to Mr. John Foster Dulles written on the occasion of calling the San Francisco Conference said:

> "I am grateful that we have been consulted and given a full opportunity to submit our views and desires, and moreover that these have been in a large measure incorporated in the draft treaty.
>
> "The treaty, as it stands, reflects abundantly American fairness, magnanimity and idealism."

The Government of the United States [wonders whether] doubts that the Government of India has fully understood and taken into account the views of the Government and people of Japan.

4. The Government of India further suggests that the Treaty is not so framed as to enable all countries especially interested in the maintenance of stable peace in the Far East, to subscribe to the Treaty sooner or later.

The Treaty makes provision for multilateral signature now and obligates Japan to conclude similar treaties with all countries not now signatory who are parties to the United Nations Declaration of January 1, 1942. The

Governments of the United Kingdom and of the United States, sponsors of the present text, and the many other Allied Powers which have cooperated to produce that text, have gone to great pains to assure that the Treaty will be such as to enable all of the Allies to subscribe to it.



5. The Government of India suggests that the Treaty should restore in full Japan's sovereignty "over territory of which the inhabitants have an historical infinity with her (Japan's) own people" and which she has not acquired by aggression from any other country.

This principle would involve a major departure from the Potsdam Surrender Terms, which the Government of India has never questioned during the five and one-half years during which India has served as a member of the Far Eastern Commission. The Surrender Terms specified categorically that Japanese sovereignty should be limited to the four home islands and to such minor islands as the parties to the Surrender Proclamation might determine. The principle now put forward by the Government of India

would require the retention by Japan of full sovereignty over the Kurile Islands, and over the Ryukyu Islands. Yet, the Government of India criticizes the Treaty provisions with reference to the Kurile Islands because it does not explicitely transfer full sovereignty to the Soviet Union and criticizes the provision with reference to the Ryukyus because, although it leaves sovereignty in Japan, it permits of a United Nations trusteeship with the United States as administering authority.

The Government of the United States finds it difficult to understand how the Government of India can be confident that future arrangements regarding the Ryukyu and Bonin Islands, the terms of which are not yet formulated, will hereafter "be a source of dissatisfaction to large sections of the Japanese people". Why not the Kuriles and Formosa too?

6. The Government of India objects because the Treaty gives Japan the right to prevent its becoming [a vacuum of] an indefensible state [power] between the date of the coming into force of the Treaty of Peace and the coming into force of some voluntary collective security arrangement. The Government of India

suggests that the only way to prove that such a security arrangement is in fact voluntary is to subject Japan to the grave risk incident to being totally defenseless in close proximity to proved aggression. There is no solid ground to conclude that this is desired by the people of Japan or that it would promote the welfare of Japan for the Treaty of Peace to impose that grave hazard upon Japan.

The Government of the United States has gone to great lengths to ascertain that any security agreement which Japan seeks shall, in fact, be responsive to the will of the Japanese people. It would be quite impracticable and totally unwelcome for the United States to help to defend Japan if it were not wanted by the Japanese people. The statements of the Japanese Government, of the political leaders of the Diet, and the results of numerous public opinion polls, all demonstrate that the Japanese do not want Japan to become a vacuum of power upon the coming into force of the Treaty of Peace. Every presumption suggests the correctness of this conclusion. No less

than 30 of the Allied Powers, almost all of which are members of the United Nations, have freely made collective security arrangements to which the United States is a party and it would, indeed, be surprising if the sentiment which has animated so many free peoples did not manifest itself also in Japan.

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7. The Government of India states that the future of Formosa should not be left "undertermined". It suggests that the Treaty should provide for the return of Formosa to China but that "the time and manner of such return might be the subject of separate negotiations". It would seem to the United States that a future disposition is "undertermined" if it depends upon future negotiations as to time and manner. That, indeed, is the present status and that status is not altered by Japan's renunciation of its interest in Formosa.

The Government of India must be fully aware that there cannot at the present time be any final agreement among the Allied Powers with respect to the future of Formosa. To insist that a Japanese Peace Treaty be

deferred until there is such agreement is, in fact, to postpone indefinitely the restoration of Japan to "honor, equality and contentment among the community of free nations", which the Government of India agrees is an urgent requirement. Furthermore, the Government of the United States observes that the Government of India apparently does not intend itself to defer ending its state of war with Japan until the future of Formosa has been definitely dealt with, ~~which will certainly place such agreement in the far distant future~~

8. The Government of the United States does not claim that the prospective Treaty of Peace is in every respect perfect. It involves [~~defects and~~ out] compromises such as are the inevitable accompaniment of any concerted human effort. The essential thing is that the Treaty [makes peace] and ~~does~~ is so in terms which do not contain within themselves the seeds of another war. Delay would cost a price which makes petty all the sacrifices incident to present action. It would perpetuate the Surrender Terms which subject the Japanese Government to the military rule of Allied Powers. If that subjection is continued after

the occupation has served its legitimate and valid purposes the result is indistinguishable from colonialism and imperialism in vicious form. The United States does not want to be a party to colonialism or imperialism. none of that. That is why we strive so earnestly to achieve the best possible peace as promptly as possible. That is why we contribute so liberally to the rehabilitation of our former enemies as well as to our friends. We regret that the Government of India is not disposed to be party to this effort. We particularly regret that the Government of India has taken a stand which will enable those who do not want world unity to pretend that there is a gulf between the peoples of India and the great majority of the world community. However, the Government of the United States welcomes the assurances of the Government of India that, in so far as consistent with the principles on which its foreign policies are based, it will continue to cooperate with the United States Government and other governments to the end that lasting peace will prevail in the Far East. The Government of the United States hopes that these principles to which the Government of India alludes will not exclude cooperation which is practical and fruitful.

The Government of the United States notes the intention of the Government of India to communicate its reply to the Indian Parliament on August 27 providing the United States Government has no objection. The United States Government does not object to this course and informs the Government of India that it ~~had intended to~~ will make public at the same time this reply of the Government of the United States to the Government of India.

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